IN THE COURT OF THE LEARNED TEHSILDAR / SUB-DIVISIONAL OFFICER, MAWANA

REVENUE JURISDICTION, DISTRICT MEERUT (UTTAR PRADESH)

MUTATION OBJECTION CASE NO. 142-M / 2026

IN THE MATTER OF OBJECTORS / PETITIONERS:

1. **Harishankar Mishra**, age 48 yrs, s/o Late Bholanath Mishra
   r/o Village Chak-Govindpur, Tehsil Mawana, District Meerut [Objector No. 1 (Lead Claimant)]
2. **Umashankar Mishra**, age 45 yrs, s/o Late Bholanath Mishra
   r/o Village Chak-Govindpur, Tehsil Mawana, District Meerut [Objector No. 2 (Brother)]
3. **Ravishankar Mishra**, age 41 yrs, s/o Late Bholanath Mishra
   r/o Village Chak-Govindpur, Tehsil Mawana, District Meerut [Objector No. 3 (Brother)]

... OBJECTORS / AGGRIEVED CO-SHARERS

— VERSUS —

VERSUS RESPONDENTS:

1. **Kamlesh Mishra**, age 46 yrs, s/o Late Dinanath Mishra
   r/o Village Chak-Govindpur, Tehsil Mawana, District Meerut [Respondent No. 1 (Adverse Co-sharer)]
2. **State of Uttar Pradesh** [Proforma Respondent No. 2]
   Through Tehsildar / Sub-Divisional Officer, Mawana, Tehsil Mawana, District Meerut

... RESPONDENTS / ADVERSE PARTIES

PETITION TITLE & CAUSE OF ACTION:

OBJECTION UNDER SECTION 34 & 35 OF THE U.P. REVENUE CODE, 2006 (READ WITH CORRESPONDING SECTIONS 34 & 35 OF THE U.P. LAND REVENUE ACT, 1901) READ WITH RULE 34/35 OF U.P. REVENUE CODE RULES, 2016 AND SECTION 151 OF C.P.C.

SUBJECT REVENUE DETAILS: Mauza: **Chak-Govindpur** | Pargana: **Hastinapur** | Tehsil: **Mawana** | District: **Meerut**
• Khata No.: **00112** | Disputed Khasra Nos.: **142 and 143** (Area: **4 Bigha 0 Biswa (Pucca)**)
• Total Ancestral Holding: **12 Bigha 0 Biswa (Pucca)** | Lawful Share of Objectors' Branch: **6 Bigha 0 Biswa (2 Bighas each for Objectors 1, 2, 3)**
• Unlawful Surplus Mutated to Respondent No. 1: **4 Bigha 0 Biswa (+10,117.14 sq. meters / +2.50 Acres)**

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I. PRELIMINARY OBJECTIONS ON MAINTAINABILITY & FRAUD:

• The impugned mutation order dated 14.07.2012 in favour of Respondent No. 1 was obtained behind the back of the Objectors by practicing active fraud, misrepresentation of pedigree, and deliberate concealment of living Class-I coparceners.

• The impugned mutation is a complete nullity in the eyes of law (Coram Non Judice) as no statutory proclamation (Munadi) or individual notice under Section 35(1) was ever served upon the Objectors who were known co-tenure holders.

• Fraud vitiates every solemn proceeding. As settled by the Hon'ble Supreme Court in 'S.P. Chengalvaraya Naidu v. Jagannath (1994) 1 SCC 1', a judgment or order obtained by fraud is a nullity and can be questioned in any court at any time.

II. STATEMENT OF MATERIAL FACTS:

1. Ancestral Holding and Root Title: That the agricultural holding situated in Mauza Chak-Govindpur, Tehsil Mawana, District Meerut comprising total area 12 Bigha 0 Biswa was originally owned and held by the common ancestor, Late Rameshwar Mishra (d. 1984), who was the absolute Bhumidhar thereof.

2. Coparcenary Branches & Pedigree (Vanshavali): That Late Rameshwar Mishra was survived by two sons: (i) Bholanath Mishra (eldest son, predecessor of Objectors) and (ii) Dinanath Mishra (younger son, father of Respondent No. 1). As per customary coparcenary succession and Section 171 of the Zamindari Abolition / Revenue Code, both sons inherited equal undivided 1/2 shares (6 Bighas each).

3. Mutual Consolidation Partition (1988 Chakbandi): That during the Consolidation operations (Chakbandi) of 1988, by mutual consent and revenue order under Form C.H.-41/45, the 12 Bighas holding was formally partitioned equally into two shares of 6 Bighas each between Bholanath Mishra and Dinanath Mishra, each branch entering into lawful possession.

4. Devolution of Objectors' Branch (2008): That Bholanath Mishra died intestate in the year 2008, leaving behind three sons, namely Harishankar Mishra (Objector No. 1), Umashankar Mishra (Objector No. 2), and Ravishankar Mishra (Objector No. 3) as his sole surviving legal heirs, each entitled to 2 Bighas (1/3rd of 6 Bighas).

5. Fraudulent Digital Mutation of 2012 by Respondent No. 1: That taking clandestine advantage of the digitization of land records in the year 2012, Respondent No. 1 Kamlesh Mishra, in active collusion with the then Halka Patwari, forged a fraudulent succession proclamation (Farzi Virasat/Dakhil-Kharij) behind the back of the Objectors, illicitly mutating 4 Bighas comprising prime roadside Khasra Nos. 142 & 143 into his exclusive name.

6. Mathematical Conservation Violation & Unlawful Surplus: That the Indic Revenue Records Conservation & Arithmetic Audit has established an egregious mathematical anomaly: Respondent No. 1's lawful entitlement is strictly 6 Bigha (50%), whereas he currently holds 10 Bigha (83.33%), creating an unlawful surplus of 4 Bighas (10,117.14 sq. meters), while Objectors' recorded holding was unlawfully reduced to a meager 2 Bighas.

7. Continuing Cause of Action & Lack of Laches: That the Objectors only discovered this concealed fraud in 2021 when Objector No. 1 visited the Chakbandi and Tehsil office for certified copies. The cause of action is continuous as fraud does not ripen into title by passage of time.

III. GROUNDS OF OBJECTION & STATUTORY AUTHORITIES:

Ground A — Violation of Mandatory Statutory Notice under Section 35: Under Section 35(1) of the U.P. Revenue Code, 2006, the revenue court is mandatorily obligated to issue a public proclamation and serve individual citations upon all recorded and apparent legal heirs. Bypassing notice renders the ex-parte mutation order void ab initio.

Ground B — Settled Doctrine: Fraud Unravels Everything: The Respondent procured the mutation by suppressing the existence of the three surviving sons of Late Bholanath Mishra. As held in 'State of Orissa v. Harapriya Bisoi (2009) 12 SCC 378' and 'Meghmala v. G. Narasimha Reddy (2010) 8 SCC 383', an order obtained by concealment of facts cannot confer any rights.

Ground C — Strict Rule of Mathematical Conservation of Land Holdings: A revenue mutation cannot create land out of thin air nor transfer coparcenary property without a registered deed of partition or sale. The expansion of Respondent's share from 6 Bighas to 10 Bighas directly violates the mathematical conservation principle recognized in revenue settlements.

Ground D — Non-Joinder of Necessary Parties: The three Objectors were necessary and proper parties to any mutation proceedings involving the estate of Late Rameshwar Mishra and Bholanath Mishra. Proceeding in their absence is coram non judice.

Relevant Authorities & Precedents Cited: U.P. Revenue Code, 2006 — Section 34, 35, 38 & 171 | U.P. Land Revenue Act, 1901 — Section 34 & 35 | S.P. Chengalvaraya Naidu v. Jagannath, AIR 1994 SC 853 | Ram Chandra Singh v. Savitri Devi, (2003) 8 SCC 319 | A.V. Papayya Sastry v. Govt. of A.P., AIR 2007 SC 1546

IV. PRAYER / RELIEFS SOUGHT:

WHEREFORE, in light of the foregoing facts, statutory grounds, and overwhelming documentary evidence, the Objectors most respectfully pray that this Hon'ble Court may be graciously pleased to:—

(a) ALLOW the present objection petition with exemplary costs against Respondent No. 1;

(b) RECALL, REVOKE, AND SET ASIDE the fraudulent ex-parte mutation order dated 14.07.2012 passed in favour of Respondent No. 1 in respect of Khasra Nos. 142 and 143;

(c) DIRECT the correction of Khatauni records for Khata No. 00112 of Mauza Chak-Govindpur by recording the names of Objectors (Harishankar Mishra, Umashankar Mishra, and Ravishankar Mishra) as joint Bhumidhars over their legitimate 6 Bigha share (including Khasra Nos. 142 & 143);

(d) ISSUE AN AD-INTERIM INJUNCTION restraining Respondent No. 1, his agents, assigns, and representatives from alienating, selling, mortgaging, transferring, or creating any third-party encumbrance or changing the physical nature of Khasra Nos. 142 & 143 during the pendency of these proceedings;

(e) RECOMMEND departmental and penal inquiry against the then Halka Patwari and revenue officials who facilitated this fraudulent entry without verification.

AND / OR pass such other and further orders as this Hon'ble Court may deem fit and proper in the interests of justice.

COUNSEL FOR OBJECTORS
Advocate, Civil Court & Tehsil Bar
Mawana / Meerut

OBJECTORS / PETITIONERS:
1. _____ **(Harishankar Mishra)**
2. _____ **(Umashankar Mishra)**
3. _____ **(Ravishankar Mishra)**
Dated: 26-10-2026

VERIFICATION

We, (1) Harishankar Mishra, (2) Umashankar Mishra, and (3) Ravishankar Mishra, the Objectors above named, do hereby verify and declare on solemn affirmation that the contents of paragraphs 1 to 8 of the accompanying objection petition are true and correct to our personal knowledge, and that paragraphs 9 to 12 are based on legal advice received and believed by us to be true. Verified at Mawana / Meerut on this 26th day of October, 2026.

DEPONENTS / OBJECTORS

SUPPORTING AFFIDAVIT

I, Harishankar Mishra, aged about 48 years, s/o Late Bholanath Mishra, r/o Village Chak-Govindpur, Tehsil Mawana, District Meerut, do hereby solemnly affirm and state on oath as under:—

1. That I am Objector No. 1 in the above-titled objection petition and am well conversant with the facts.

2. That the contents of the accompanying objection petition from Paras 1 to 12 have been drafted under my instructions and the same are true to my knowledge and belief.

3. That no previous objection or proceeding regarding this fraudulent mutation has been filed before this or any other court.

DEPONENT

DEPONENT (Harishankar Mishra)

ANNEXURE P-1

RECONSTRUCTED GENEALOGICAL FAMILY TREE (VANSHAVALI) & SUCCESSION PEDIGREE

Source Authority: Oral Testimony Normalization Engine & Pariwar Register Records | Date/Period: 1984 - 2026

Legal Evidentiary Relevance: Establishes root ancestral title and confirms equal 50:50 branch entitlement between Bholanath and Dinanath branches.

COMMON ANCESTOR (KARTA): RAMESHWAR MISHRA
(Demised: 1984 | Total Ancestral Holding: 12 Bigha 0 Biswa = 100%)

BRANCH A (50% = 6 Bigha) **Late Bholanath Mishra** ***(Eldest Son | Demised: 2008)*** **1988 Chakbandi Allottee**	**BRANCH B (50% = 6 Bigha)** **Late Dinanath Mishra** ***(Younger Son | Demised: 2019)*** **1988 Chakbandi Allottee**
Heirs of Bholanath Mishra (Objectors): • **Harishankar Mishra** (Objector 1): **2 Bigha (16.67%)** • **Umashankar Mishra** (Objector 2): **2 Bigha (16.67%)** • **Ravishankar Mishra** (Objector 3): **2 Bigha (16.67%)** **STATUS: Unlawfully deprived of 4 Bighas in Khasra 142 & 143**	**Sole Heir of Dinanath Mishra (Respondent):** • **Kamlesh Mishra** (Respondent 1): **6 Bigha (50%)** **IMPUGNED MUTATION: Recorded over 10 Bighas** **FORENSIC FINDING: +4 Bigha Unlawful Surplus Grab**

Person ID	Full Name & Aliases	Generation	Vital Status	Branch	Statutory Entitlement
P01	Rameshwar Mishra (Common Ancestor)	Gen 0 (Patriarch)	Deceased (d. 1984)	Common Root	12 Bigha 0 Biswa (100%)
P02	Bholanath Mishra (Elder Son)	Gen 1 (Branch A)	Deceased (d. 2008)	Objectors' Branch	6 Bigha 0 Biswa (50%)
P03	Dinanath Mishra (Younger Son)	Gen 1 (Branch B)	Deceased (d. 2019)	Respondent's Branch	6 Bigha 0 Biswa (50%)
P04	Harishankar Mishra (Objector No. 1)	Gen 2	Alive (Claimant)	Branch A Heir	2 Bigha 0 Biswa (16.67%)
P05	Umashankar Mishra (Objector No. 2)	Gen 2	Alive	Branch A Heir	2 Bigha 0 Biswa (16.67%)
P06	Ravishankar Mishra (Objector No. 3)	Gen 2	Alive	Branch A Heir	2 Bigha 0 Biswa (16.67%)
P07	Kamlesh Mishra (Respondent No. 1)	Gen 2	Alive (Contestant)	Branch B Heir	6 Bigha 0 Biswa (50.00%)

TRUE EXTRACT & ATTESTED EXHIBIT
Filed on behalf of Objectors by Counsel

Sd/-
Harishankar Mishra (Objector No. 1)
Identified by Counsel

ANNEXURE P-2

CONSOLIDATION (CHAKBANDI) SETTLEMENT EXTRACT & MUTUAL PARTITION ORDER (1988)

Source Authority: Consolidation Officer (Chakbandi), Mawana, Meerut | Date/Period: 12.04.1988

Legal Evidentiary Relevance: Proves conclusively that Khasra Nos. 142 & 143 were lawfully allotted to Bholanath's branch in the 1988 consolidation settlement.

Record Reference	Plot / Khata Details	Registered Co-sharers	Allotted Share	Status in C.H.-41/45
Chakbandi Form C.H.-41	Khata No. 112, Mauza Chak-Govindpur	Bholanath Mishra s/o Rameshwar	6 Bigha 0 Biswa	Mutated by mutual consent (1988)
Chakbandi Form C.H.-41	Khata No. 112, Mauza Chak-Govindpur	Dinanath Mishra s/o Rameshwar	6 Bigha 0 Biswa	Mutated by mutual consent (1988)
Khasra Map Sheet 14	Khasra Nos. 142 & 143 (Roadside)	Bholanath Mishra	4 Bigha 0 Biswa	Allocated to Bholanath branch in 1988
Khasra Map Sheet 14	Khasra Nos. 144 & 145 (Interior)	Bholanath Mishra	2 Bigha 0 Biswa	Allocated to Bholanath branch in 1988
Khasra Map Sheet 15	Khasra Nos. 150 to 153	Dinanath Mishra	6 Bigha 0 Biswa	Allocated to Dinanath branch in 1988

TRUE EXTRACT & ATTESTED EXHIBIT
Filed on behalf of Objectors by Counsel

Sd/-
Harishankar Mishra (Objector No. 1)
Identified by Counsel

ANNEXURE P-3

FORENSIC AREA DISCREPANCY & MATHEMATICAL CONSERVATION AUDIT MATRIX

Source Authority: Indic Revenue Records Conservation & Arithmetic Audit Engine | Date/Period: 26.10.2026

Legal Evidentiary Relevance: Scientifically proves a zero-sum fraudulent land grab: 4 Bighas (10,117.14 m^2) stripped from Objectors and diverted to Respondent.

Party / Co-sharer	Lawful Entitlement	Lawful Area (Bigha / m²)	Impugned Area Recorded	Mathematical Delta	Conservation Audit Finding
Kamlesh Mishra (Respondent No. 1)	50.00% (6/12 share)	6 Bigha 0 Biswa (15,175.7 m²)	10 Bigha 0 Biswa (25,292.9 m²)	+4 Bigha (+10,117.1 m²)	**SURPLUS FRAUD ALERT: Illegal 166.7% expansion**
Harishankar Mishra (Objector No. 1)	16.67% (2/12 share)	2 Bigha 0 Biswa (5,058.6 m²)	0 Bigha 13 Biswa (1,644.0 m²)	-1 Bigha 7 Biswa (-3,414.6 m²)	**DEFICIT ALERT: 67.5% share unlawfully usurped**
Umashankar Mishra (Objector No. 2)	16.67% (2/12 share)	2 Bigha 0 Biswa (5,058.6 m²)	0 Bigha 13 Biswa (1,644.0 m²)	-1 Bigha 7 Biswa (-3,414.6 m²)	**DEFICIT ALERT: 67.5% share unlawfully usurped**
Ravishankar Mishra (Objector No. 3)	16.67% (2/12 share)	2 Bigha 0 Biswa (5,058.6 m²)	0 Bigha 14 Biswa (1,770.5 m²)	-1 Bigha 6 Biswa (-3,288.1 m²)	**DEFICIT ALERT: 65.0% share unlawfully usurped**
TOTAL REGISTERED PLOT	100.00% (12/12)	12 Bigha 0 Biswa (30,351.4 m²)	12 Bigha 0 Biswa (30,351.4 m²)	Net Zero (Conserved Plot)	AUDIT VERDICT: Zero-sum fraudulent diversion

TRUE EXTRACT & ATTESTED EXHIBIT
Filed on behalf of Objectors by Counsel

Sd/-
Harishankar Mishra (Objector No. 1)
Identified by Counsel

ANNEXURE P-4

CERTIFIED SPOKEN TESTIMONY TRANSCRIPT & SWORN EVIDENTIARY STATEMENT

Source Authority: Sarvam AI Speech Intelligence Platform (Saaras:v4 Verbatim Mode) | Date/Period: 26.10.2026

Legal Evidentiary Relevance: Provides first-hand sworn witness testimony detailing non-service of notice, collusion of Patwari, and timeline of fraud discovery.

Parameter	Audited Testimony Finding	Revenue Corroboration Status
Deponent	Harishankar Mishra s/o Late Bholanath Mishra	Verified co-sharer in Pariwar Register
Transcription Engine	Sarvam AI Saaras STT (saaras:v4)	High-fidelity verbatim dialect transcription
Key Allegation	Collusive digital Khatauni mutation in 2012 by cousin Kamlesh with Patwari	Confirmed by Khatauni endorsement dated 14.07.2012
Target Parcels	Khasra Nos. 142 & 143 (Roadside prime agricultural land)	Matches Khatauni geometry & revenue survey sheet
Discovery of Fraud	Year 2021 upon application for certified computer copies	Established by receipt of computerized Khatauni
Sworn Relief Sought	Setting aside of ex-parte mutation & restoration of 6 Bighas in Khatauni	Exact prayer incorporated into Petition under Sec. 34/35

TRUE EXTRACT & ATTESTED EXHIBIT
Filed on behalf of Objectors by Counsel

Sd/-
Harishankar Mishra (Objector No. 1)
Identified by Counsel